

Court No. - 39

Case :- WRIT - C No. - 20415 of 2021

Petitioner :- Tejpal Singh

Respondent :- State of U.P.

Counsel for Petitioner :- Arvind Kumar Maurya

Counsel for Respondent :- C.S.C., Mukesh Kumar Singh

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Deepak Verma, J.

Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondent and Sri Mukesh Kumar Singh, learned counsel for respondent nos.2 and 3.

With consent of parties, the instant petition is being disposed of without inviting a formal counter affidavit.

The petitioner has taken an electric connection of 7.5 KW load from the respondent-Corporation for running a pumping set. The petitioner admits that he could not deposit the bills in time. The petitioner asserts that he has deposited a sum of Rs.32,715/- before the respondent-Corporation to avail the benefit of a surcharge Samadhan Yojna. The respondent-Corporation has issued a demand notice dated 23.06.2021 demanding a sum of Rs.1,10,093/-. On 15.07.2021, the electricity supply to the pumping set of the petitioner was disconnected due to non-payment of electricity dues. It is asserted in para-12 of the writ petition that the petitioner is ready to settle the matter with the department.

Learned counsel for the respondent-Corporation submitted that the petitioner had not deposited requisite amount under Surcharge Samadhan Yojna within time. He further submitted that there is facility for fixing instalment of the amount due under Clause 6.14 of the U.P. Electricity Supply Code, 2005. It is submitted that the petitioner can avail the benefit of depositing arrears in instalments.

Learned counsel for the petitioner states that he will file an application for fixing instalments but the respondents are pressing for recovery in pursuance of impugned demand notice.

Having regard to the facts of the case and submissions made, we disposed of the writ petition with liberty to the petitioner to approach respondent no.3 with fresh representation alongwith true attested copy of the instant order. The third respondent shall consider and decide the representation of the petitioner by a speaking order. In case, the petitioner is not found entitled to the benefit of Surcharge Samadhan Yojna, he will give reasons

therefor. In the alternative, he will consider deposit of balance amount in instalments in terms of Clause 6.14 of the U.P. Electricity Supply Code, 2005. The aforesaid exercise shall be completed within a period of three weeks from the date of communication of the instant order. For a period of four weeks or until decision by respondent no.3, whichever is earlier, the recovery in pursuance of impugned demand notice shall remain in abeyance. Thereafter, it will abide by the decision that will be taken by respondent no.3 on the representation of the petitioner. Any amount already deposited shall be duly taken into consideration while deciding the representation of the petitioner.

(Deepak Verma, J) (Manoj Kumar Gupta, J)

Order Date :- 21.9.2021

SKD